

25STCV20111 25STCV20111

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-06-24

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Case Number: 25STCV20111 Hearing Date: June 24, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: June 24, 2026

Case Name: Amar v. FCA US LLC, et al.

Case No.: 25STCV20111

Matter: Motion to Compel

Moving Party: Plaintiff Amar

Responding Party: Defendant FCA US LLC

Notice: OK

Ruling: The Motion is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is a lemon law action.

Plaintiff Lauren Amar seeks to compel initial disclosures from Defendant FCA US LLC.

Defendant contends that Code of Civil Procedure section 871.26 does not explicitly require a written, verified pleading or response, but merely the physical production of documents. The Court rejects this narrow interpretation.

Under the statutory framework governing initial disclosures, a party must provide an authenticated statement of compliance to ensure completeness. Code of Civil Procedure section 2016.090(a)(5), which informs the mechanics of mandatory disclosures, explicitly requires that initial disclosures be verified by a written declaration of the party or signed by counsel. A compliance framework relies on formal verification to prevent selective withholding and to guarantee that a diligent search was executed. While FCA notes it eventually served unverified written disclosures on June 10, 2026, in an abundance of caution, it must formalize this with a proper statutory verification signed under penalty of perjury by an authorized representative or signed by counsel of record.

Section 871.26 establishes an expedited discovery regime for Song-Beverly consumer warranty actions, making specific categories of upfront disclosures mandatory without awaiting a formal discovery request. Plaintiff argues that FCA's production of the vehicle's warranty transaction history is filtered and incomplete. Section 871.26(h)(7) explicitly mandates the production of the "entire warranty transaction history for the motor vehicle." This includes automated system entries such as AutoPay claims and "Trouble Not Found" (TNF) diagnostic claims submitted under Labor Operation Codes (LOP) 85-41-XX-XX or the 08-19-XX-40 series. These entries constitute recorded diagnostic and repair attempts germane to a Song-Beverly claim (see *Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785). FCA is ordered to produce a complete, unfiltered DealerCONNECT report and transaction history containing these fields to the extent they exist for this VIN.

Under sections 871.26(h)(8), (9), and (10), the manufacturer must disclose recalls, field actions, Technical Service Bulletins (TSBs), and Informational Service Bulletins (ISBs) reasonably related to the alleged nonconformities. FCA has produced TSBs and certain recall records but has apparently produced no ISBs. FCA must explicitly clarify in its verified written response whether any responsive ISBs exist and, if so, produce them.

Section 871.26(h)(13) requires the production of service manuals reasonably related to the vehicle's alleged nonconformities. FCA objects to producing its Warranty Administration, Dealer Policy, Customer Assistance Center, and Service Manuals without a protective order, claiming they are commercially sensitive. To the extent a protective order has now been entered, FCA must fully produce the relevant manual segments within the 10-day compliance window.

In sum, the Motion is granted. Production/responses are to be provided within 10 days. No sanctions.

Moving party to give notice.